



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

SEP 26 1990

DOT-E 10474

1. Occidental Chemical Corporation, Tacoma, Washington is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a nonflammable gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a DOT Specification 105A500W tank car tank with a defective safety relief valve for the transportation of chlorine, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on Occidental Chemical Corporation's application of September 21, 1990, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for protection of life.

3. HAZARDOUS MATERIALS (Descriptor and class). Chlorine, classed as a nonflammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Chlorine.

5. REGULATION AFFECTED. 49 CFR 173.31 (a) and 179.102-2.

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a DOT Specification 105A500W tank car tank, HOKX 7878, with a defective safety relief valve, which has been equipped with a chlorine "C" kit to prevent the emission of chlorine vapors.

b. The manway protective housing cover while opened must be chained or otherwise fastened so that it cannot change position during transportation.

8. SPECIAL PROVISIONS.

a. Shipment must be between Grow Group's facility, Auburn, Washington, and Occidental Chemical Corporation, Tacoma, Washington, a distance of 20 miles, using the most direct route available (Burlington Northern Railroad).

b. The tank car must be marked "DOT-E 10474" above the DOT specification number in at least four inch letters on a contrasting background.

c. The Federal Railroad Administration (FRA) is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

d. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. November 30, 1990.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

SEP 26 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FRA.